RFQ Conditions

Created by Robert Bosch GmbH
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Robert Bosch GmbH
Postfach 30 02 20
70442 Stuttgart
Visitor:
Bregenzer Straße 26
70469 Stuttgart-Feuerbach
Tel +49 711 811-0
www.bosch.com

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1. GENERAL RFQ CONDITIONS

The present RFQ offers the opportunity to a limited number of selected Suppliers (hereinafter referred to also as "Bidders") to be qualified with a complete Offer and/or Concept for this RFQ. After the evaluation and comparison of the Offers/Concepts, consultations are held with Bidders who have submitted the best Offers in terms of performance, price and quality. Therefore, all the Requirements contained in this RFQ are binding for the Bidders.
Based on the first Offers and/or Concepts submitted, BOSCH will select Bidders for further Offer negotiations, so it is important to submit the best Offer from the beginning.
BOSCH reserves the right to change, suspend or terminate the RFQ process at any time without providing any reasons for doing so. Furthermore, BOSCH reserves the right to change the scope and contents of the RFQ at its own discretion.
All costs arising from the RFQ preparation and submission shall be borne by the Bidders. The RFQ and the associated RFQ process expenses are generally free of charge for BOSCH.
BOSCH reserves the right to review Offers according to its internal criteria and to reject Offers without explaining reasons for it.

1.1 Calculation basis

Details on Quantity Structures and/or Services, provided by BOSCH, serve to support the Offer evaluation. BOSCH explicitly states that the mentioned figures are based on past empirical values and are not necessarily applicable to this RFQ, so they are not binding for the validity of the Offers.

Registered Office: Stuttgart, Registration Court: Amtsgericht Stuttgart, HRB 14000;
Chairman of the Supervisory Board: Prof. Dr. Stefan Asenkerschbaumer; Managing Directors: Dr. Stefan Hartung, Dr. Christian Fischer, Filiz Albrecht, Dr. Markus Forschner, Dr. Markus Heyn, Rolf Najork

1.2 Price confirmation

The specified prices indicated into the Offer are binding for the Bidders. The prices must be specified as net figures and quoted in the specified currencies, ex VAT. The prices should contain maximum 2 decimals.
The RFQ is a non-binding request. The Offer submitted by the Bidders shall entail no legal obligation on the part of BOSCH to accept it or to enter into a Contract based on it.

1.3 Communication about the RFQ

Any communication in relation to this RFQ must be made solely with the indicated BOSCH contacts. Offers (technical and commercial) are requested to be sent only via i-Source tool in the required timing.
A breach of these communication and submission regulations may lead to exclusion of the Bidders from the RFQ.

1.4 Ownership of material

Offers and eventual supporting materials will not be generally returned to Bidders.

1.5 Error in quotes

BOSCH is not liable for errors in the Offers from the Bidders. A Bidder may correct an error in his Offer only with the approval of BOSCH. No verbal, telephone or faxed modifications or corrections will be accepted.

1.6 Deviations in submitted supplier offer

If BOSCH asks the Bidder to upload documents to the additional attachments area, there should not be any deviations between the uploaded documents and the answers given by Bidder in the other sections of the technical and commercial response form. In case of deviations, the data entered into the predefined buyer questions of the other sections of the technical and commercial response form shall prevail. In case of errors, sec. 1.5 above shall apply accordingly.

1.7 Acceptance of Quotes

By being awarded by BOSCH, Bidder grants to BOSCH the right to exercise a purchase option until the validity date of Bidder's offer as stated therein. This option can be exercised by BOSCH or any Company of the Bosch-Group by issuing a purchase order. The parties mutually agree that BOSCH has no obligation to exercise the option and that in the event of the option not being exercised Bidder cannot derive any claims whatsoever against BOSCH. For the sake of clarification, the displayed status in i-Source "closed_awarded" / "awarded" does not imply acceptance of the offer.

2. CONFIDENTIALITY

This RFQ is strictly confidential and is only accessible to those who are directly involved into the RFQ process. BOSCH ensures the strict confidentiality of the incoming Offers, as well as the Bidder ensures to keep all information about this RFQ confidential.
The Bidders maintain silence on the invitation to this RFQ and their participation therein up until the official announcement of the award of contract or cancellation thereof by BOSCH. In the case a Bidder decides not to participate any longer in the RFQ process, it becomes his obligation to destroy all records and documents he has received, stored and/or printed out.
All provided data and information are only to be used for the calculation of the Offer value and have to be treated as confidential.
The partners of the contract, as a final result from the RFQ process, ensure that all information about the contract and its fulfilment have to be treated as confidential, even after the termination of the contract. Upon the occurrence of any compelling reasons that require an ease of the confidentiality agreement (e.g. authorities, insurers) the contractual partners decide on the further procedure.

3. CODE OF CONDUCT

As an international group, BOSCH takes its responsibility very seriously and has made the unconditional adherence to statutory regulations a top priority. As a well-known company, BOSCH is interested in offering internationally recognized working and production conditions. For this

reason, BOSCH social standards contain clear regulations on appropriate remuneration, health and safety protection, as well as on a ban on the employment of minors. BOSCH also requires this from its Suppliers.

4. ACCEPTANCE OF CUSTOMS REQUIREMENTS REGARDING AEO AUTHORIZATION

Robert Bosch GmbH and a majority of its subsidiaries and regional companies are holders of an AEO-Security ("Authorized economic operator") authorization. This results in obligations to contribute to the security of the international supply chain. A resulting obligation is that suppliers of BOSCH are obligated to ensure the supply chain security limited to their range of task.
Bidders, whose employees or subcontractors enter premises (with the exception of simple administrative premises without any production or warehouse activities) of BOSCH Group in an EU member state, confirm and commit to fulfill the requirements laid down in the „Security declaration" (detailed information see AEO Guideline esp. Annex III).

The bidders declare hereby that:

- they inform their employees which are working at a location of Robert Bosch GmbH/ subsidiaries of Robert Bosch GmbH about the basics of the security of the international supply chain.
- they instruct their employees to stay only in such areas at a location of Robert Bosch GmbH/ subsidiaries of Robert Bosch GmbH which are necessary for the fulfillment of their tasks
- they instruct their employees only to visit the production and logistic areas at a location of the Robert Bosch GmbH/ subsidiaries of Robert Bosch GmbH if it is necessary for the fulfillment of their tasks
- they instruct their employees to bring in or out goods at a location of the Robert Bosch GmbH/ subsidiaries of Robert Bosch GmbH if it is necessary for the fulfillment of their tasks
- they explicitly instruct their employees to refrain manipulations of goods and packages.

Business partners who are acting on their behalf are informed that they also need to ensure the supply chain security as mentioned above. They undertake to check their employees against the EU sanctions lists (e.g., regulation (EG) 2580/2001, 881/2002 and 753/2011).

5. APPLICABLE DOCUMENTS FOR RFQ

BOSCH Purchasing Terms and Conditions.
Please use following url:
https://www.bosch.com/company/supply-chain/information-for-business-partners/#purchasing-terms-and-conditions
and select “Europe and Middle East” -> “Germany”.

Code of Conduct for Business Partners, Bosch Group.
Please use following url:
https://www.bosch.com/company/supply-chain/information-for-business-partners/#responsibility-and-sustainability
and select “Responsibility” -> “Code of Conduct for Business Partners”.

Acceptance of electronic process.
Supplier confirms and commits to use the electronic process via SupplyOn agreed with BOSCH for orders, order changes, order confirmations as well as invoices and credit notes including relevant appendices for all active locations.
Please use following url:
Infoportal | Bosch P2P (supplyon.com)
and select “SupplyOn Processes”.

Special BOSCH Terms and Conditions for Training services.
Please use following url:
https://www.bosch.com/company/supply-chain/information-for-business-partners/#purchasing-terms-and-conditions
and select “Global Supplementary Terms & Conditions” -> “Special Terms and Conditions for the assignment of training services”.

BOSCH Terms and Conditions for the awarding of services and engineering contracts.
Please use following url:
https://www.bosch.com/company/supply-chain/information-for-business-partners/#purchasing-terms-and-conditions
and select “Global Supplementary Terms & Conditions” -> “Supplementary Terms and Conditions for Work and Services”.

BOSCH Special Conditions for Products regarding Open Source Software.
Please use following url:
https://www.bosch.com/company/supply-chain/information-for-business-partners/#purchasing-terms-and-conditions
and select “Global Supplementary Terms & Conditions” -> “Additional Terms and Conditions for Products regarding Open Source Software”.

BOSCH norms for MAE.
Please use following url:
https://www.bosch.com/company/supply-chain/information-for-business-partners/#purchasing-terms-and-conditions
and select “Global Supplementary Terms & Conditions” -> “Delivery instructions for machinery”.
Or open the DIREKT LINK to zip-file delivery instructions for machinery.